

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 28-005
Amendments to Title 2, Chapter 4, Article B,
Sections 2-425, 2-426 and 2-427 of the Chickasaw Nation Code
(Judicial, Legislative, and Executive Department Salaries)

PASSED

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the Office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Tribal Legislature finds that a need exists for the review of salaries paid elected officials of the Chickasaw Nation every four (4) years in accordance with Amendment IV, Section 1 of the Constitution of the Chickasaw Nation, and

WHEREAS, the Legislature also finds that the four (4) year periods began in 1983; therefore, the salaries paid elected officials of the Chickasaw Nation must be reviewed in Fiscal Year 2011.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 2, Chapter 4, Article B, Sections 2-425, 2-426 and 2-427 of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through). The effective date of the following amendments is October 1, 2011:

“SECTION 2-425

JUDICIAL DEPARTMENT SALARIES.

The salary of each Justice of the Supreme Court shall be the sum of ~~three thousand dollars (\$3,000)~~ **four thousand dollars (\$4,000)** per month, plus a five percent (5%) increase to the salary for each year of service which has been completed as a Justice of the Supreme Court under the Constitution of 1983. In addition, annually, the Chickasaw Nation shall contribute an amount equal to twenty-five percent (25%) of each Justice's total annual salary to a retirement/investment plan, as directed by the Justice. The Justice that is elected to serve as Chief Justice shall receive an additional **two hundred fifty dollars (\$250)** ~~one hundred dollars (\$100)~~ per month for the duration of time in which he serves in that capacity.”

“SECTION 2-426

LEGISLATIVE DEPARTMENT SALARIES.

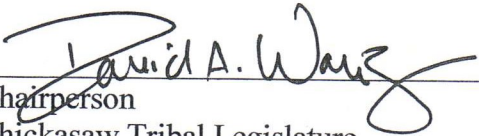
B. The salary of the Legislators shall be the sum of ~~three thousand, five hundred dollars (\$3,500)~~ **five thousand dollars (\$5,000)** per month, plus a ~~three and one half percent (3.5%)~~ **five percent (5%)** increase to the salary for each year of service which has been completed as a Tribal Legislator under the Constitution of 1983. In addition, annually, the Chickasaw Nation shall contribute an amount equal to twenty-five percent (25%) of the Legislator's total annual salary to a retirement/investment plan, as directed by the Legislator.”

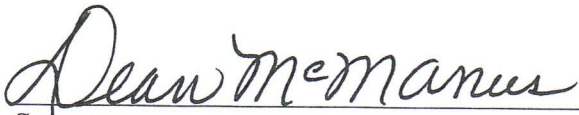
"SECTION 2-427EXECUTIVE DEPARTMENT SALARIES.

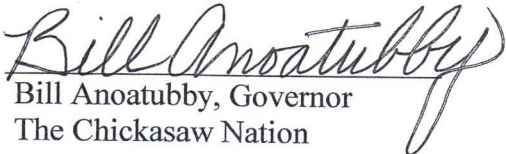
A. The salary of the Lieutenant Governor shall be the sum of ~~two hundred thousand dollars (\$200,000)~~ **four hundred thousand dollars (\$400,000)** per annum, plus fifty thousand dollars (\$50,000) per annum for each term of office completed as Lieutenant Governor under the Constitution of 1983. In addition, annually, the Chickasaw Nation shall contribute an amount equal to thirty percent (30%) of the Lieutenant Governor's total annual salary to a retirement/investment plan, as directed by the Lieutenant Governor.

B. The salary of the Governor shall be the sum of ~~three hundred thousand dollars (\$300,000)~~ **six hundred thousand dollars (\$600,000)** per annum, plus fifty thousand dollars (\$50,000) per annum for each term of office completed as Governor under the Constitution of 1983. In addition, annually, the Chickasaw Nation shall contribute an amount equal to thirty percent (30%) of the Governor's total annual salary to a retirement/investment plan, as directed by the Governor."

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on August 19, 2011, by a vote of 10 ayes, 3 nays, 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: AUG 19 2011

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 28-005
Amendments to Title 2, Chapter 4, Article B,
Sections 2-425, 2-426 and 2-427 of the Chickasaw Nation Code
(Judicial, Legislative, and Executive Department Salaries)

Explanation: The Chickasaw Constitution, Article VII, Section 11, as amended by Amendment IV dated September 27, 1990, provides that the Tribal Legislature shall review salaries and allowances pertaining to the elected officials of the Chickasaw Nation every fourth year. September, 2011, represents that last month of the fourth year of the cycle established in 1983. In the four years since the salaries of Chickasaw Nation elected officials were last reviewed in accordance with this statutory requirement, and more particularly during the eight years that have passed since the base salaries were last adjusted for the Tribal Legislature, the Chickasaw Nation has grown dramatically in terms of the scope of its economic development and service provision to tribal citizens, number of employees, overall annual revenues, and complexity of its initiatives. Significant growth in these areas is expected to continue over the next four years before the Tribal Legislature will again have an opportunity to address this important matter. In order to attract and maintain the level of skill, ability, experience, and expertise appropriate to lead a tribal organization of the Chickasaw Nation's scope and sophistication, increases in the compensation of elected officials of the Chickasaw Nation are warranted. This resolution would adjust compensation for elected officials of the Chickasaw Nation to levels more consistent with compensation for leadership in organizations of similar size and complexity.

This resolution amends that part of Title 2, Chapter 4, Article B, Section 2-425, pertaining to the salary and retirement benefits of the Justices of the Supreme Court. This resolution increases the base salary of each Justice of the Supreme Court from \$3,000 per month to \$4,000 per month. It also increases the monthly amount for serving as Chief Justice from \$100 to \$250.

This resolution also amends that part of Title 2, Chapter 4, Article B, Section 2-426, pertaining to the salary and retirement benefits of the Tribal Legislators. This resolution increases the base salary of each Tribal Legislator from \$3,500 to \$5,000. This resolution also increases the percentage increase in salary per year of service for each Tribal Legislator from 3.5% to 5%.

This resolution also amends that part of Title 2, Chapter 4, Article B, Section 2-427 pertaining to the base salary and retirement benefits of the Governor and Lieutenant Governor. This resolution increases the base salary of the Governor from \$300,000 to \$600,000 per year and the base salary of the Lieutenant Governor from \$200,000 to \$400,000 per year.

Presented By: Legislative Committee